

PLD 2020 Peshawar 1

Before Waqar Ahmad Seth, C.J. and Abdul Shakoor, J

MASOOM JAN---Petitioner

Versus

FEDERATION OF PAKISTAN through Secretary Ministry of Interior, Islamabad and 4 others---Respondents

C.M. No.2224-P of 2019 in Writ Petition No.5265 of 2018, decided on 5th November, 2019.

(a) Constitution of Pakistan ---

---Art. 199---Earlier judgment of Bench consisting of equal Judges of the High Court---Binding effect---Constitution of a Larger Bench---Scope---When a subsequent Bench of the High Court comprising of same numbers of Judges, did not wish to agree with the view of earlier Benches on the same point then instead of giving a different view, it had to request for the constitution of Larger Bench to revisit the earlier view of the Court---Wisdom behind honouring the earlier view of the Benches of the same High Court by the subsequent Bench on the same point of law, was to maintain harmony in the decisions of the Court on the same point of law---If, a Bench of equal numbers of Judges, was permitted to give a different view than the earlier view of the Bench of equal numbers of Judges on the same point of law, it would certainly create chaos and confusion, not only for the public at large, but also for the Courts, subordinate to the High Court.

(b) Pakistan Army Act (XXXIX of 1952)---

---S. 97---Constitution of Pakistan, Art. 199---Decision of Military Courts/Criminal Courts---Constitutional jurisdiction of the High Court to interfere in such decision---Scope---High Court, in exercise of its judicial review under Art.199 of the Constitution had the mandate to positively interfere with the decisions of the Criminal Courts/Military Courts, against which no right of appeal was available to the accused/convicts, if the case of prosecution was based on no evidence or insufficient evidence, was void, coram non-judice, without jurisdiction and based on mala fide or malice in law.

(c) Administration of justice--

---Constitution of High Court Benches---Scope---(Peshawar) High Court Rules and Orders---Constitution of Larger Bench---Scope---No provision existed either in Peshawar High Court Rules or Civil Procedure Code, 1908, which may give right to a party to a case to make a request for the constitution of Larger Bench.

Qazi Babar Irshad, Additional Attorney General, Shumail Ahmad Butt, Advocate-General and Amir Javed, Advocate on behalf of applicants/respondents Nos.1, 2, 3 and 5.

Zia Ur Rehman Tajik, Shabbir Hussain Gigyani, and Naveed Akhtar for Petitioners in main writ petitions.

ORDER

ABDUL SHAKOOR, J.--Through this application, applicants/ respondents Nos.1, 2, 3 and 5, have prayed for the constitution of Larger Bench in the main writ petition and petitions connected therewith, to give an independent view in it, since Division Bench, headed by the Hon'ble Chief Justice in the case of "Abdul Rasheed v. Federation of Pakistan and others" (decided on 18.10.2018), has taken a view altogether different than the one earlier expressed by 21 different

Benches of this Court in 24 cases involving the same points as were involved in the aforesaid case of Abdul Rasheed. It was also made a point for the constitution of Larger Bench that previously Division Benches of this Court, while delivering the judgments in similar cases, have held that it lacked the jurisdiction to question the verdicts of Field General Court Martial passed under the Pakistan Army Act, 1952.

2. Learned Additional Attorney General, learned Advocate General, Khyber Pakhtunkhwa and Mr. Amir Javed, Advocate, appearing on behalf of applicants/respondents Nos.1, 2, 3 and 5 in support of their prayer made in the instant application for the constitution of Larger Bench in the aforesaid writ petition and petitions connected therewith, have argued, the Division Bench, headed by the Hon'ble Chief Justice, while acquitting the accused/convicts in the above referred case (Abdul Rasheed v. Federation of Pakistan and others) and connected matters therewith; who were convicted by the Field General Court Martials under the Pakistan Army Act, 1952 has not taken note of 24 decisions of almost 21 Benches of this Court, wherein, in similar cases having the same facts, in view of limited scope of the judicial review mandated under Article 199 of the Constitution of Pakistan, 1973, in the face of repeated admissions of the guilt made by the convicts, culminating in the one before the Court Martial, have observed, it would not be appropriate for this Court to interfere in the impugned conviction recorded and sentence awarded by the Field General Court Martials under the Pakistan Army Act, 1952. It is, by now, well settled through the judicial pronouncements of the apex Court that earlier judgment of Bench of equal Judges of the High Court on the same point of law was binding on the subsequent Bench, and if the subsequent Bench intends to take a different view, then it has to make a request for the constitution of Larger Bench, however, with all respect and humility, the Bench, headed by the Hon'ble Chief Justice, has given a different verdict than the verdicts of the earlier Division Benches of this Court, on the same very point, therefore, it has become essential, a Larger Bench be constituted for an independent view in the aforesaid writ petition and petitions connected therewith. Since the same will resolve the controversy of different opinions of the Benches of this Court in similar matters, decided by the Military Courts. In support of their contention, they relied upon the cases "Multiline Associates v. Ardeshir Cowsjee (PLD 1995 SC 423), Ardeshir Cowsjee v. Karachi Building Control Authority (KMC) (1999 SCMR 2883), Atma Ram v. State of Punjab (AIR 1959 SC 519 ref), M/s. WAK Limited Multan Road, Lahore v. Collector Central Excises and Sales Tax, Lahore (Now Commissioner Inland Revenue LTU, Lahore) (2018 SCMR 1474), Muhammad Aamir Khan v. Government of Khyber Pakhtunkhwa through Senior Member Board of Revenue, Khyber Pakhtunkhwa and others (2019 SCMR 1021) and Shafqat @ Shafaat v. The State (PLD 2019 SC 43).

3. On the other hand, learned counsel appearing on behalf of the petitioner of the main petition and petitioners of the connected petitions, vehemently opposed, the instant application being based on mala fide and not maintainable and prayed for its dismissal with costs. They, in support of the point of mala fide, pointed out, the Bench, headed by the Hon'ble Chief Justice had been stressing to the applicants/respondents to argue the case but they have avoided it on the one pretext or the other. On 19.03.2019, applicants/respondents were given last opportunity by the Bench to produce the relevant record regarding conviction of the accused/convicts for the examination of their

counsel on 25.05.2019 positively, failing which the matter would be heard on the available record on 28.05.2019. However, on 28.05.2019 instead of submitting the requisite record on the basis of which conviction was recorded against the accused/convicts of the aforesaid cases, applicants/respondents only submitted the comments. As the comments so filed were not supported by the sworn affidavit, therefore, they were directed by the Bench to submit the said comments along with sworn affidavit on the next date of hearing. After the receipt of comments, the case was fixed for hearing on 04.09.2019 and applicants/respondents' counsel instead of arguing the case, sought further time. However, the Bench adjourned the matter with the condition that it will be decided on 01.10.2019 on the basis of written arguments of the applicants/respondents and arguments of the counsel of the accused/convicts of the above petitions. On 01.10.2019, the applicants/respondents, instead of submitting written arguments, as per the direction of the Bench dated 04.09.2019, filed the instant application for the constitution of Larger Bench. This conduct of the applicants/respondents is more than sufficient in proving, the instant application is filed with mala fide intention to delay the disposal of the above writ petitions which are pending disposal since long. In support of the point of non-maintainability of the instant application, it was contended, there is no provision in the Peshawar High Court Rules or Civil Procedure Code, 1908, which may give a right to party of case to file an application before the Court for the constitution of Larger Bench; and thus, the instant application is liable to be dismissed on this score alone.

4. We have seriously considered the submissions of the learned counsel of the parties and carefully gone through the judgment passed by the Bench of this Court in the case of "Abdul Rasheed v. Federation of Pakistan and others" decided on 18.10.2018 and earlier 24 judgments of this Court, probably, rendered by 21 different Benches.

5. No doubt, it is well settled principle, when a subsequent Bench of the High Court comprising same numbers of Judges, does not wish to agree with the view of earlier Benches on the same point then instead of giving a different view, it has to request for the constitution of Larger Bench to revisit the earlier view of the Court. The wisdom behind to honor the earlier view of the Benches of the same High Court by the subsequent Bench on the same point of law, is to maintain harmony in the decisions of the Court on the same point of law. If, a Bench of equal numbers of Judges, is permitted to give a different view than the earlier view of the Bench of equal numbers of Judges on the same point of law, it will certainly create a chaos and confusion, not only for the public at large, but also for the Courts, subordinate to the High Court. Since, Courts subordinate to the High Court will be unable to follow different views of the High Court on the same point of law as guiding principle for resolution of the controversy arising in the cases on the same point. Perusal of the judgment dated 18.10.2018 passed in the case of Abdul Rasheed would show that in it, no different view has been expressed than the view of earlier Benches of this Court, as submitted by the applicants/respondents. It has exercised the jurisdiction of judicial review, keeping in view the record, came before it relating to the cases of accused/convicts decided by the Military Courts. As, it is settled principle, High Court, in exercise of its judicial review under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, has the mandate to positively interfere with the decisions of the Criminal Courts/Military Courts, against which no right of appeal is available to the accused/convicts. If the case of prosecution was based on no evidence or insufficient

evidence, void, coram non-judice, without jurisdiction and based on mala fide or malice in law. A close examination of the earlier judgments of the Benches of this Court would show that there was no such material before them, which came in the case of Abdul Rasheed and cases connected therewith. Hence, they have declined to interfere with the conviction recorded and sentence awarded to the convicts by the Military Courts. Whereas, the Bench decided the case of Abdul Rasheed v. Federation of Pakistan and others connected cases, has summoned the complete record of the Military Courts on the basis of which it has recorded the conviction of the accused/convicts and accordingly awarded them sentences. Examination of the said record revealed to the Bench that questions put to all the accused-persons by the Military Courts were one and the same with exactly the same answers in all cases. Statements made by the accused-persons show that they spoke what they were briefed in the Internment Center, as it was next to impossible, the accused-persons, after remaining in the Internment Center for years, could remember the exact date, time and minute of the alleged occurrence in which they were convicted. Proceedings, before the Military Courts, infact, were a complete prosecution show and accused/convicts were denied their fundamental right of engaging a private counsel of their choice at their own expense. It was also observed by the Bench, nothing on the record showed that during trial, families of the accused/convicts who frequently requested for meeting with them in the Internment Center were ever informed or had the knowledge of the trial proceedings. The alleged confessional statements made by the accused/convicts without any independent advice after months/years of confinement with Military Courts and Internment Center, cannot be made a base for awarding them a sentence of capital punishment. All this led the Bench to conclude that it, in view of the aforesaid principle of judicial review can interfere with the conviction recorded and sentences awarded to the accused/convicts by the Military Courts.

6. The conduct of the applicants/respondents which has been pointed out by the learned counsel of the petitioners is showing, they have filed the instant application simply to linger on the matters pending adjudication before this Court for its disposal since long. It is also worth to mention here, applicants/respondents since the admission of the aforesaid petitions till 27.09.2019 has never made a request for the constitution of Larger Bench. When they were finally directed by the Bench to submit their written arguments on 01.10.2019 for the disposal of the aforesaid cases then they sprung into action for filing the aforesaid application for the constitution of Larger Bench. We fully agreed with the contention of the learned counsel of the accused/convicts that there is no provision either in Peshawar High Court Rules or Civil Procedure Code, 1908, which may give a right to party of a case to make a request for the constitution of Larger Bench. It is also not out of context to mention here, this Court till date has neither heard the arguments of the learned counsel of the parties in the aforesaid writ petition and petitions connected therewith, nor a situation has arisen wherein it could examine the record. As, till date, the applicants/respondents have not produced the record of the Military Courts on the basis of which it has recorded conviction of the accused/convicts of the petitions pending disposal. Thus, no question of constitution of Larger Bench arises.

7. Apart from the above, it is a matter of record, applicants/ respondents have already challenged the decision of this Court rendered in the case of Abdul Rasheed and cases connected therewith

before the apex Court. The apex Court, after entertaining the appeals of the applicants/respondents, was pleased to suspend the operation of the judgment rendered by this Court in the case of Abdul Rasheed and cases connected therewith. When such being the case, we understand, this Court cannot constitute a Larger Bench in the case, which's operation stood suspended by the order of the apex Court viz-a-viz the judgments rendered by the earlier Benches of this Court.

8. For what has been discussed above, we do not see any reason for the constitution of Larger Bench as prayed for by the applicants/respondents Nos.1, 2, 3 and 5. Accordingly, the instant C.M. is dismissed, being based on mala fide and not maintainable.

9 Main writ petition and petitions connected therewith are adjourned to 26.11.2019 for final arguments. Till the date fixed, interim order granted in all the cases shall continue.

10. It may be noted, no further adjournment shall be granted in the aforesaid cases to anyone on any ground on the date fixed. Copy of this order be placed on the connected writ petitions.

MWA/276/P Order according

PLD 2020 Balochistan 1

Before Jamal Khan Mandokhail and Rozi Khan Barrech, JJ
CHAIRMAN, NAB through Prosecutor General---Appellant

Versus

MUNAWAR MASIH and another---Respondents

Criminal Ehtesab Appeal No.14 of 2019, decided on 9th August, 2019.

(a) National Accountability Ordinance (XVIII of 1999)---

---Ss. 15, 25 & 32---Criminal Procedure Code (V of 1898), S. 265-K---Plea bargain---Appreciation of evidence--- Determination of liability, responsibility of---Application under S.265-K, Cr.P.C. filed by accused was converted into plea bargain application by Trial Court and same was allowed on basis of liability determined by Trial Court---Validity---Plea bargain was offer and confession of accused that he received corrupted money by corruption and corrupt practice---Such accused was liable to be convicted for disqualification for a period of ten years under S.15 of National Accountability Ordinance, 1999---Accused neither filed application for plea bargain before NAB nor the Chairman NAB approved plea bargain of accused---Trial Court directly converted application filed by accused under S.265-K, Cr.P.C. into application under S.25 of National Accountability Ordinance, 1999 for plea bargain and accepted same as plea bargain--Application of accused before Trial Court to fix his liability was not maintainable---Trial Court had no power to fix liability and direct the Chairman NAB to accept the same---Fixing of amount of liability was in discretion of the Chairman NAB and Trial Court had no role in such respect---High Court set aside order passed by Trial Court and remanded matter to proceed from stage at which case stood when application of accused under S.265-K, Cr.P.C. was decided---Appeal was allowed accordingly.

The State through Advocate-General, Sindh High Court of Karachi v. Raja Abdul Rehman 2005 SCMR 1544 rel.

(b) Administration of justice---

---Doing of a thing---Principle---Where procedure has been provided for doing a thing in a particular manner that thing should be done in that manner and in no other way or it should not be done at all---Such impliedly prohibits doing of a thing in any other manner, compliance for such thing in no way could be either ignored or dispensed with.

Ch. Mumtaz Yousaf, DPG along with Jaffar Raza, ADPG for National Accountability Bureau (NAB) for Appellant.

Shahid Javed for Respondents.

Date of hearing: 22nd July, 2019.

JUDGMENT

ROZI KHAN BARRECH, J.---This matter is listed for Kacha Peshi and during hearing with consent of the parties it was agreed that the matter would be heard and decided at Kacha Peshi stage.

This appeal has been filed by the State through Prosecutor General, NAB against the order dated 26.03.2019 ("impugned order") passed by the Accountability Court-I, Quetta ("trial court"),

whereby the application filed by respondent No.1 under Section 265-K, Cr.P.C. was converted into plea bargain application and was accepted by the trial court.

2. Briefly stated the facts, relevant for disposal of this appeal are that one Arshad Habib the then Divisional Superintendent Post

Offices Quetta Division, Quetta lodged a complaint vide letter No.1-3/5/2001- 2002 dated 10th June 2002 before the Director FIA Quetta for registration of a case against the accused/respondent namely Munawar Masih, ex-Postmaster Shelia Bagh Post Office. On the direction of Director FIA an inquiry was initiated into the matter and on finalization of the same, case was registered vide FIR No. 3 of 2003 under Sections 402, 420, 471, 477-A, 109, P.P.C. read with section 5(2) of the Act-II, 1947 against the accused/respondent, who had allegedly misappropriated an amount of Rs.14,40,570/- pertaining to money orders issued from the said post office, but the amount received against subject money orders was not credited in the relevant account. On merger of crime wing of FIA into NAB, the case was transferred to NAB Balochistan and the investigation of case was authorized by Director General NAB Balochistan on 26th June 2005.

3. After completion of inquiry/investigation Reference No.7 of 2007 was filed before the trial court on 3.5.2007 and warrants of arrest of accused/respondent were issued but could not be executed as the accused/respondent was fugitive. Despite issuance of proclamation under Section 87, Cr.P.C. and publication in the newspapers, the accused/respondent did not appear and he was declared proclaimed offender vide order dated 24.7.2007, by the trial court, and was convicted under Section 31-A of the National Accountability Ordinance, 1999 (the "NAB Ordinance") for a period of three years and case file was kept in dormant till his arrest. Thereafter the accused/respondent was admitted to ad-interim bail by this court with direction to appear before the trial court, whereafter the accused/respondent appeared before the trial court. The trial court framed charge and read over to the accused/respondent on 4.9.2018, to which he did not plead guilty and claimed trial. During trial the prosecution produced three witnesses. Meanwhile, the accused/respondent filed an application under Section 265-K with the ground that the accused/respondent has deposited the alleged misappropriated amount of Rs.14,40,570/- with the department and the department has closed the case against him. Under such circumstances, the trial court by converting the application under Section 265-K Cr.P.C into plea bargain and accepted the same. Hence, this appeal.

4. We have heard the arguments of Ch. Mumtaz Yousuf, DPG NAB assisted by Mr. Jaffar Raza ADPG NAB on behalf of the state and Mr. Shahid Javed on behalf of the accused/respondent and have also perused the material available on record.

5. Plea Bargain (PB) is the offer and confession of the accused that he has received corrupted money by corruption and corrupt practices and he is liable to be convicted for disqualification for a period of ten years under Section 15 of NAB Ordinance 1999. Admittedly the accused/respondent neither filed an application for plea bargain before the NAB authorities nor the Chairman NAB approved the plea bargain of the accused/respondent. The trial court directly converted the application filed by accused/respondent under Section 265-K Cr.P.C. into an application under Section 25 of the NAB Ordinance for plea bargain and accepted the same as a plea bargain. Now the question arises as to what are the requirements of section 25(b) of the NAB

Ordinance, which deals with the case of plea bargain. For ease of reference Section 25(b) of the NAB Ordinance is set out below:

"S.25(b) Where at any time after the authorization of investigation, before or after the commencement of the trial or during the pendency of an appeal, the accused offers to return to the NAB the assets or gains acquired or made by him in the course, or as a consequence, of any offence under this Ordinance, the Chairman, NAB, may, in his discretion, after taking into consideration the facts and circumstances of the case, accept the offer on such terms and conditions as he may consider necessary, and if the accused agrees to return to the NAB the amount determined by the Chairman, NAB, the Chairman, NAB shall refer the case for the approval of the Court, or as the case may be, the Appellate Court and for the release of the accused. (bold added)"(sic).

6. A perusal of Section 25(b) NAO explicitly makes it clear that it is only the Chairman NAB who can refer the PB matter to the court for approval. Thus, the application of the petitioner before the Accountability Court to fix the liability was not maintainable. The trial court has no power to fix the liability and direct the Chairman NAB to accept it. Fixing of the amount of liability is in the discretion of the Chairman NAB and the trial court has no role in this respect. It is well settled principle of law that where a procedure has been provided for doing a thing in a particular manner that thing should be done in that manner and in no other way or it should not be done at all, indeed it impliedly prohibits doing of thing in any other manner, the compliance for such thing in no way could be either ignored or dispensed with. Even if the Chairman NAB refers the PB then it must be approved (or not approved) by the trial court through a speaking order.

7. We have also noticed that the trial court had erred in entertaining the application under Section 265-K Cr.P.C on behalf of accused/respondent and converting his applicain in the plea bargain at the time when the prosecution's evidene was yet to be recorded and no request was made by the Chairman NAB for accepting the application for plea bargain. We are conscious of the fact that there was no bar of limitation as to the trial or the stage of the proceedings for filing an application for acquittal of the accused, but propriety demands that a fair opportunity should be provided to the prosecution to prove its case by producing evidence and the matters should be decided on merits as envisaged under section 245 of the Cr.P.C. after providing proper opportunity to the prosecution for producing its evidence and recording the statements of the accused persons under section 342 of the Cr.P.C.

8. In cases of corruption and misappropriation of public money, the Courts were required to act with extreme care and caution in deciding such cases and should not proceed hastily in acquitting the accused persons involved therein either under section 249-A or 265-K of the Cr.P.C., as the case may be, but should provide the prosecution every possible opportunity to prove its case and establish the guilt of the accused after a full-fledged trial. Reliance is placed on the case titled as The State through Advocate General, Sindh High Court of Karachi v. Raja Abdul Rehman (2005 SCMR 1544).

The accused/respondent directly deposited the alleged misappropriated amount of Rs.14,40,570/- with the department i.e. Office of the Postmaster General on 3rd August 2016. The question arises that, whether the said office has the authority to receive the misappropriated amount from

respondent/accused. Basically the amount would be deposited in the account of Provincial or Federal Government. It is important to mention here that the accused/respondent has misappropriated an amount of Rs.14,40,570/- in the year 2001 and allegedly he deposited the alleged misappropriated amount on 3rd of August 2016.

For the foregoing facts and discussions, the impugned order dated 26.03.2019 passed by the trial Court is set-aside and we direct that the case of accused/respondent Munawar Masih son of Inayat Masih shall proceed from the stage, at which the case stood when the application of accused/respondents under section 265-K of the Cr.P.C. was decided. Appeal is, accordingly, disposed of.

The accused/respondent will be at liberty if so advised to file an application to the NAB authorities for plea bargain in accordance with law and the NAB shall if such offer is made, consider the same as per law.

MH/72/Bal. Case remande